

Bench: Biswanath Rath

5. It is in this view of the matter, this Court finds there is no difficulty in undertaking of the proceeding under Section 13 of the Hindu Marriage Act by the wife at Chhatrapur and merely because an application under Section 9 of the Hindu Marriage Act is filed at the instance of the husband at Bhubaneswar cannot be a ground for transfer of the MAT proceeding filed by the wife. It is in this view of the matter, this Court finds no ground for transfer of the MAT Case No.20 of 2019 from the court of Civil Judge (Senior Division), Chhatrapur to the court of Judge, Family Court, Bhubaneswar. Consequently, the TRP(C) stands rejected with vacation of interim order dated 25.11.2019 passed by this Court in I.A.No.,422 of 2019. This Court however observes in the event petitioner has genuine intention to bring back the wife to his custody, he may make appropriate approach to the Civil judge (Senior Division), Chhatrapur to have a conciliation in the said regard.

6. As the restrictions due to resurgence of COVID-19 situation are continuing, learned counsel for the parties may utilize a print out // 3 // of the order available in the High Court's website, at par with certified copy, subject to attestation by the concerned Advocate, in the manner prescribed vide Court's Notice No.4587, dated 25th March, 2020 as modified by Court's notice No.4798, dated 15th April, 2021.

(Biswanath Rath) Judge